

****December 18, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in November 2024, an investigation into the operator Electrica Furnizare S.A. and found a violation of the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with a fine of 14,929.20 lei (equivalent to the amount of 3,000 EURO).

The investigation was initiated following complaints submitted by an individual regarding a possible violation of the provisions of Regulation (EU) 2016/679.

The individual reported that they received information from Electrica Furnizare S.A. that contained personal data of a person subscribed to the company, and that information was not intended for them. During the investigation, the National Authority for Supervision found that the operator, in the course of its activities related to managing customer tickets, recorded a request for the reimbursement of an amount from a client.

The respective request had attached documents of a contract holder that contained personal data from the identity card, bank account, address of the data subject, and civil status certificates of the contract holder.

The email address was associated with that of a third party, so the information regarding the personal data of a contract holder was transmitted to another client.

This situation led to the unauthorized disclosure of personal data (name, surname, address, phone number, email address, series and number of the identity card, personal identification number, civil status), as a result of the transmission via email by the operator to a third party of documents belonging to another client.

As a result, the investigation found that the operator did not implement appropriate technical and organizational measures to ensure a level of security corresponding to the risk of processing, including the ability to ensure the confidentiality and integrity of processing systems and services, thus violating the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of Regulation (EU) 2016/679. Additionally, under Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, a corrective measure was ordered against the operator Electrica Furnizare S.A. to introduce a monitoring solution for the application of the implemented work procedures, in terms of verifying the identity of the data subject, to avoid similar security incidents.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****